

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**AFFIDAVIT OF INDIGENCY AND EXTRAORDINARY CIRCUMSTANCES
IN SUPPORT OF MOTION TO STAY ENFORCEMENT PENDING
APPEAL**

I, Marc Moszkowski, declare under penalty of perjury pursuant to 28 U.S.C. § 1746 that the following is true and correct to the best of my knowledge, information, and belief: this is not a judgment grounded in law—it is an institutional collapse in the guise of justice.

1. I am the Defendant and Appellant in this action. I am 71 years old and reside alone in my ancestral home in a remote region of southern France. I have not left this house—even briefly—since 2019.
2. I possess no assets of any financial value. My sole bank account is in France and is subject to automatic judicial seizure under a lien

obtained by a shareholder of Plaintiff DeepGulf, Inc. acting in concert with Rus Howard. The French tax authority has initiated additional proceedings against the same property. My total balance has never exceeded the protected threshold of €646, beyond which any amount is automatically seized, leaving me with no capacity to meet any enforcement actions or judicial costs while awaiting the outcome of my appeal..

3. I receive a monthly pension of **approximately \$900**, which is barely sufficient to cover mandatory utilities, internet, basic insurance, and minimal food for myself and the **eight dogs who have chosen to live with me** and with whom I share this home.
4. I have **no car, no access to credit, and no remaining friends or family**. All social ties were severed due to the pressures, threats, and manipulations stemming from this litigation. I now live in complete physical and social isolation.
5. The house in which I live is not fungible property: it is my sole shelter, inherited through my parents, and paid for through personal sacrifice—including full inheritance tax. The litigation against me began in 2017, shortly after these facts became known to the Plaintiffs.

6. If I am evicted and forced to surrender or cull the dogs who remain my only living companions, I will be left without purpose, community, or hope. The consequences of such enforcement would be not merely material but existential, constituting an extraordinary circumstance that warrants a stay of enforcement in the interest of humanitarian necessity.
7. I do not seek pity. I seek only the opportunity to pursue appellate review without procedural annihilation. If this Court permits enforcement of judgment prior to that review, it will render the appeal meaningless and cause irreversible harm.
8. I respectfully request that this Honorable Court grant a stay of enforcement and waive the requirement of a supersedeas bond on grounds of indigency, humanitarian necessity, and in preservation of constitutional due process. Under Florida Rule of Appellate Procedure 9.310(b)(1), a party may be relieved from posting a supersedeas bond where the party demonstrates indigency or substantial hardship. I respectfully submit that my financial situation qualifies under these grounds.

Executed on July 14, 2025.

I declare under penalty of perjury that the foregoing is true and correct .

28 U.S.C. § 1746 (unsworn declaration under federal law).

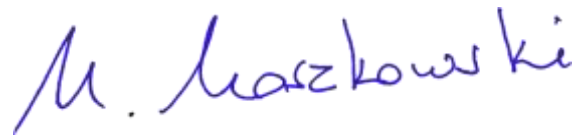
Respectfully submitted this 14th day of July, 2025.

Marc Moszkowski, Pro Se

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Le Verdos

83300 Châteaudouble, France



CERTIFICATE OF SERVICE

I hereby certify that, on this 14th day of July, 2025, a copy of this Affidavit has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

